

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X

CLINTON MOODY,

Plaintiff,

-against-

CITY OF NEW YORK; Police Officer CARMELO
STRACUZZI, Shield No. 19479; Detective
MICHAEL PITKEWICZ, Sergeant DAWN
ADAMES; Detective CHRISTOPHER ARENA;
JOHN and JANE DOE 1-10,

Defendants.

-----X

To the above-named Defendants:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: December 30, 2019
New York, New York

Yours, etc.,
ELEFTERAKIS, ELEFTERAKIS & PANEK

By: 
Gabriel P. Harvis, Esq.,
Attorneys for the Plaintiff
80 Pine Street, 38th Floor
New York, New York 10005
(212) 532-1116

Defendants:**CITY OF NEW YORK**

100 Church Street
New York, NY 10007

Police Officer CARMELO STRACUZZI, Shield No. 19479;

100 Church Street
New York, NY 10007

Detective MICHAEL PITKEWICZ

100 Church Street
New York, NY 10007

Sergeant DAWN ADAMES

100 Church Street
New York, NY 10007

Detective CHRISTOPHER ARENA

100 Church Street
New York, NY 10007

Failure to respond, a judgment will be against you, by default and interest from October 14, 2017.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS

-----X
CLINTON MOODY,

Plaintiff,

-against-

CITY OF NEW YORK; Police Officer CARMELO
STRACUZZI, Shield No. 19479; Detective
MICHAEL PITKEWICZ; Sergeant DAWN
ADAMES; Detective CHRISTOPHER ARENA;
JOHN and JANE DOE 1-10,

Defendants.
-----X

Plaintiff CLINTON MOODY, by his attorneys, ELEFTERAKIS, ELEFTERAKIS &
PANEK, complaining of the defendants, respectfully alleges:

JURISDICTION

1. The action arises under the Fourth, Fifth, Sixth and Fourteenth Amendments of the
United States Constitution and the laws of the State of New York.

2. Jurisdiction is conferred by 42 U.S.C. § 1983 and the laws of the State of New
York.

3. On or about December 26, 2018, and within ninety (90) days after the claim arose,
plaintiff served, presented, and filed a duly sworn Notice of Claim, in writing, upon defendants in
accordance with General Municipal Law 50-e, and which set forth the following:

- a. the nature of the claim;
- b. the time when, place where, and manner in which the claim arose; and
- c. the items of damages and injuries sustained.

Index No.:
Date Purchased:

VERIFIED COMPLAINT

4. That more than thirty (30) days have elapsed since the presentation of the aforesaid claim, and defendants have neglected and/or refused to make an adjustment and/or payment on plaintiff's claim.

5. The City of New York examined plaintiff pursuant to G.M.L. § 50-h on or about May 3, 2019.

6. That the action has been commenced within one year and ninety days of the accrual of the cause of action.

PARTIES

7. Plaintiff CLINTON MOODY is a resident of the State of New York.

8. Defendant City of New York is a municipal corporation organized under the laws of the State of New York. Defendant City, acting through the New York Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel. In addition, senior officials in the NYPD are aware of and tolerate certain practices by subordinate employees in criminal investigations, regardless of whether they are acting according to written policy. These practices, which are wide-spread, long-tolerated and uncorrected are deeply embedded in the NYPD culture and therefore constitute unwritten policies or customs. In addition, at all times here relevant, defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and the State of New York.

9. Defendants Police Officer CARMELO STRACUZZI, Shield No. 19479; Detective MICHAEL PITKEWICZ; Sergeant DAWN ADAMES; Detective CHRISTOPHER ARENA were, at all relevant times employees of the NYPD. In their interactions with plaintiff these

defendants were acting in the capacity of, agent, servant and employee of defendant City of New York and acted within the scope of their employment and under color of state law. On information and belief, the above listed defendants participated in the misconduct, including the mishandling and suppression of exculpatory evidence, which led to plaintiff's false arrest, malicious prosecution, wrongful confinement, other claims and associated injuries. These defendants are collectively referred to as the "Individual Defendants" and are sued in their individual capacities.

10. John and Jane Doe 1-10 are Police Officers and/or supervisors involved in the decision to arrest and prosecute plaintiff, and those that withheld exculpatory evidence from him. John Doe #1-10 are sued in their individual capacities.

11. At all times here mentioned, defendants were acting under color of state law.

STATEMENT OF FACTS

12. On or about October 14, 2017, at approximately 11:00 a.m., several of the individual defendants arrested Mr. Moody in the vicinity of 103-25 Astoria Boulevard in Queens, New York for an alleged robbery earlier that morning of a bodega located at 103-01 Astoria Boulevard.

13. There was no evidence linking Mr. Moody, who was factually innocent, to the crime, and a variety of exculpatory evidence known to investigators proving his innocence.

14. Even though the officers knew that Mr. Moody was innocent and, upon information and belief, the victims told police that plaintiff was not the perpetrator, the individual defendants targeted Mr. Moody because, *inter alia*, he had been in the bodega earlier that morning, lived nearby and had a criminal record.

15. Based upon false allegations fabricated by the individual defendants, Mr. Moody was arraigned on armed robbery and related charges on October 15, 2017 and thereafter prosecuted in Queens under docket number CR-041481-17QN.

16. Upon information and belief, Mr. Moody was never indicted.

17. Deprived of exculpatory evidence and with fabricated evidence presented against him, the individual defendants caused Mr. Moody to be jailed for approximately seven months until he was released on his own recognizance on or about May 2, 2018.

18. After evidence establishing Mr. Moody's alibi and innocence was presented to and considered by prosecutors, all charges were dismissed on or about October 3, 2018.

DAMAGES

19. As a direct and proximate result of the acts of the Individual Defendants, Plaintiff was deprived of his liberty, suffered emotional distress, mental anguish, fear, pain, bodily injury, anxiety, embarrassment, attorney's fees, other pecuniary losses, harm to his parole status, humiliation, and damage to his reputation.

FIRST CLAIM **§ 1983 False Arrest**

20. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

21. Defendants violated the Fourth and Fourteenth Amendments because they arrested plaintiff without probable cause.

22. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SECOND CLAIM **State Law False Imprisonment and False Arrest**

23. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

24. By their conduct, as described herein, the individual defendants are liable to plaintiff for falsely imprisoning and falsely arresting plaintiff.

25. Plaintiff was conscious of his confinement.

26. Plaintiff did not consent to his confinement.
27. Plaintiff's confinement was not otherwise privileged.
28. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.
29. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

THIRD CLAIM
§ 1983 Malicious Prosecution

30. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.
31. By their conduct, as described herein, and acting under color of state law, defendants are liable to plaintiff under 42 U.S.C. § 1983 for the violation of his constitutional right to be free from malicious prosecution under the Fourth and Fourteenth Amendments to the United States Constitution.
32. Defendants' unlawful actions were done willfully, knowingly, with malice and with the specific intent to deprive plaintiff of his constitutional rights. The prosecution by defendants of plaintiff constituted malicious prosecution in that there was no basis for the plaintiff's arrest, yet defendants continued with the prosecution, which was resolved in plaintiff's favor.
33. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

FOURTH CLAIM
State Law Malicious Prosecution

34. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.
35. By their conduct, as described herein, defendants are liable to plaintiff for having committed malicious prosecution under the laws of the State of New York.

36. Defendants maliciously commenced criminal proceeding against plaintiff, charging him with various crimes. Defendants falsely and without probable cause charged plaintiff with violations of the laws of the State of New York.

37. The commencement and continuation of the criminal proceedings against plaintiff was malicious and without probable cause.

38. All charges were terminated in plaintiff's favor.

39. Defendants, their officers, agents, servants and employees were responsible for the malicious prosecution of plaintiff. Defendant City of New York, as an employer of the individual defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

40. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

FIFTH CLAIM

State Law Assault and Battery; Unlawful Strip Searches

41. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

42. By their conduct, as described herein, the defendants are liable to plaintiff for having assaulted and battered him and causing him to be unlawfully strip searched.

43. Defendant City of New York, as an employer of the individual defendant officers, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

44. As a direct and proximate result of the misconduct and abuse of authority stated above, plaintiff sustained the damages alleged herein.

SIXTH CLAIM

§ 1983 Denial of Constitutional Right to Fair Trial

45. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

46. The individual defendants created false evidence against plaintiff.

47. The individual defendants forwarded false evidence to prosecutors in the Queens County District Attorney's office.

48. In creating false evidence against plaintiff, and in forwarding false information to prosecutors, the individual defendants violated plaintiff's right to a fair trial under the Due Process Clause of the Fifth, Sixth and Fourteenth Amendments of the United States Constitution.

49. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

SEVENTH CLAIM
Malicious Abuse of Process

50. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

51. The individual defendants issued legal process to place plaintiff under arrest.

52. The individual defendants arrested plaintiff in order to obtain collateral objectives outside the legitimate ends of the legal process, to wit, to present the robbery as solved and take plaintiff off the streets.

53. The individual defendants acted with intent to do harm to plaintiff without excuse or justification.

54. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

EIGHTH CLAIM
Negligence; Negligent Hiring/Training/Retention

55. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

56. Defendant City, through the NYPD, owed a duty of care to plaintiff to prevent the conduct alleged, because under the same or similar circumstances a reasonable, prudent, and

careful person should have anticipated that injury to plaintiff or to those in a like situation would probably result from the foregoing conduct.

57. Upon information and belief, all of the individual defendants were unfit and incompetent for their positions.

58. Upon information and belief, defendant City knew or should have known through the exercise of reasonable diligence that the individual defendants were potentially dangerous.

59. Upon information and belief, defendant City's negligence in screening, hiring, training, disciplining, and retaining these defendants proximately caused each of plaintiff's injuries.

60. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

NINTH CLAIM

Negligent Infliction of Emotional Distress

61. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

62. By reason of the foregoing, the defendants, acting in their capacities as NYPD officers, and within the scope of their employment, each were negligent in committing conduct that inflicted emotional distress upon plaintiff.

63. The negligent infliction of emotional distress by these defendants was unnecessary and unwarranted in the performance of their duties as NYPD officers.

64. Defendants, their officers, agents, servants, and employees were responsible for the negligent infliction of emotional distress upon plaintiff. Defendant City, as employer of each of the defendants, is responsible for their wrongdoings under the doctrine of *respondeat superior*.

65. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TENTH CLAIM

§ 1983 Due Process/*Brady* Violation; Excessive Pretrial Detention under 4th Amendment

66. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

67. Plaintiff had a right to be free from continuing detention stemming from law enforcement officers' mishandling and suppression of evidence.

68. The actions of the individual defendants violated that right.

69. The officers' conduct in mishandling and suppressing evidence "shocks the conscience."

70. This conduct violated plaintiff's rights under the Fourth and Fourteenth Amendments of the United States Constitution.

71. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

ELEVENTH CLAIM

Failure to Intervene

72. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

73. Those defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

74. Accordingly, the defendants who failed to intervene violated the Fourth, Fifth, Sixth and Fourteenth Amendments.

75. As a direct and proximate result of this unlawful conduct, plaintiff sustained the damages hereinbefore alleged.

TWELFTH CLAIM
PUNITIVE DAMAGES & ATTORNEY FEES

76. Plaintiff repeats and realleges each and every allegation as if fully set forth herein.

77. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

78. Accordingly, plaintiff is entitled to punitive damages and attorney's fees pursuant to 42 U.S.C. § 1988.

WHEREFORE, plaintiff, CLINTON MOODY, demands that judgment, compensatory, exemplary and punitive, in an amount exceeding jurisdictional limits of all lower Courts be entered against defendants on all counts, along with reasonable attorney's fees and costs.

Dated: December 30, 2019
New York, New York

Yours, etc.,

ELEFTERAKIS, ELEFTERAKIS & PANEK,

By: _____

Gabriel P. Harvis, Esq.

Attorneys for plaintiff

80 Pine Street, 38th Floor

New York, New York 10005

(P)(212) 532-1116

(F)(212) 532-1176

ATTORNEY'S VERIFICATION

STATE OF NEW YORK)

) SS:

COUNTY OF NEW YORK)

The undersigned, an attorney admitted to practice in the Courts of the State of New York, and a partner of the law firm of Elefterakis, Elefterakis, & Panek, attorneys of record for the plaintiff herein, affirms:

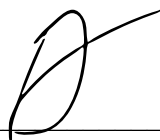
That he has read the attached SUMMONS AND COMPLAINT and the same is true to his own knowledge, except as to the matters alleged on information and belief, and as to those matters, he believes them to be true to the best of his knowledge.

That affiant's sources of information are investigation and files maintained in your affiant's law office.

That this verification is made by your affiant due to the fact that plaintiff does not presently reside within the county in which your affiant maintains his law office or is presently outside the county in which your affiant maintains his law office.

The undersigned affirms that the foregoing statements are true, under penalties of perjury.

Dated: New York, New York
December 30, 2019



Gabriel P. Harvis, Esq.

**SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF QUEENS**

CLINTON MOODY,

Plaintiff,

-against-

CITY OF NEW YORK; Police Officer CARMELO STRACUZZI, Shield No. 19479; Detective
MICHAEL PITKEWICZ, Sergeant DAWN ADAMES; Detective CHRISTOPHER ARENA;
JOHN and JANE DOE 1-10,

Defendants.

ELEFTERAKIS, ELEFTERAKIS & PANEK
80 Pine Street, 38th Floor
New York, New York 10005
212.532.1116

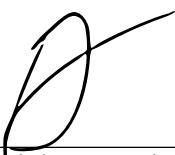
Summons and Verified Complaint

STATE OF NEW YORK, COUNTY OF NEW YORK, SS:

GABRIEL P. HARVIS, ESQ., the undersigned, an attorney admitted to practice in the
Courts of New York State, affirms the following:

I further certify that my signature below acts as a "certification" for the documents
attached hereto, in compliance with section 130-1.1-a of the Rules of the Chief Administrator (22
NYCRR).

Dated: New York, New York
December 30, 2019



Gabriel P. Harvis, Esq.

PLEASE TAKE NOTICE

- () that the within is a (certified) true copy of a Notice of entered in the Office of the clerk of
the within Entry named Court on
 - () that an Order of which the within is a true copy will be presented for
Notice of settlement to the Hon. one of the Judges of the Settlement within named Court,
on , at
-

ELEFTERAKIS, ELEFTERAKIS & PANEK
80 Pine Street, 38th Floor
New York, New York 10005